

STATE OF NEW YORK

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2025-2026 Regular Sessions

IN SENATE

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Introduced by Sens. C. RYAN, ASHBY, GALLIVAN, JACKSON, MARTINEZ, MATTERA, PALUMBO, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to the retirement of state, county and municipal 911 operators and dispatchers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The retirement and social security law is amended by adding
2 a new section 89-z to read as follows:

3 § 89-z. Optional twenty-five year retirement plan for certain public
4 safety dispatchers, public safety telecommunicators, 911 operators,
5 communications officers, police communication technicians, emergency
6 services operators and emergency services dispatchers employed by the
7 state, or a county or municipal emergency services department. a. A
8 member employed by the state, a county or a municipality shall be eligi-
9 ble to retire pursuant to the provisions of this section if such
10 member's employer elects to make the benefits authorized by this section
11 available as provided in subdivision j of this section, and if such
12 member is a public safety dispatcher, public safety telecommunicator,
13 911 operator, communications officers, or any similar title that is
14 responsible for receiving and managing emergency calls, and dispatching
15 appropriate emergency services, including but not limited to, law
16 enforcement, fire, and medical assistance employed by the state, or a
17 county or municipality. Such eligibility shall be an alternative to the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 eligibility provisions available under any other plan of this article to
2 which such member is subject. The comptroller shall have the authority
3 to include positions within the provisions of this section that compre-
4 hend the same duties and responsibilities, but are named differently.

5 b. Such member shall be entitled to retire upon the completion of
6 twenty-five years of total creditable service by filing an application
7 therefor in the manner provided for in section seventy of this article.

8 c. Upon completion of twenty-five years of such service and upon
9 retirement, each such member shall receive a pension which, together
10 with an annuity which shall be the actuarial equivalent of such member's
11 accumulated contributions at the time of such member's retirement and an
12 additional pension which is the actuarial equivalent of the reserved-
13 for-increased-take-home-pay to which such member may then be entitled
14 shall be sufficient to provide such member with a retirement allowance
15 equal to one-half of such member's final average salary.

16 d. As used in this section, "creditable service" shall include any and
17 all services performed as a public safety dispatcher, public safety
18 telecommunicator, 911 operator, communications officers, police communi-
19 cation technician, emergency services operator, emergency services
20 dispatcher, or any similar title, employed by the state, or a county or
21 municipal emergency services department who is responsible for receiving
22 and managing emergency calls, and dispatching appropriate emergency
23 services, including but not limited to, law enforcement, fire, and
24 medical assistance.

25 e. Credit for service as a member or officer of the state police or as
26 a paid firefighter, police officer or officer of any organized fire
27 department or police force or department of any county, city, village,
28 town, fire district or police district, or as a criminal investigator in
29 the office of a district attorney, shall also be deemed to be creditable
30 service and shall be included in computing years of total service for
31 retirement pursuant to this section.

32 f. The officer of the state, or chief executive officer of a county or
33 municipality that makes the election provided for in subdivision j of
34 this section shall certify to the comptroller, periodically and at such
35 intervals of time as may be required of them and in such fashion as may
36 be prescribed, the identity of members in eligible titles as defined in
37 subdivisions a and d of this section.

38 g. A member contributing on the basis of this section at the time of
39 retirement may retire after the completion of twenty-five years of total
40 creditable service. Application therefor may be filed in a manner simi-
41 lar to that provided in section seventy of this article. Upon completion
42 of twenty-five years of such service and upon retirement, each such
43 member shall receive a pension which, together with an annuity which
44 shall be the actuarial equivalent of such member's accumulated contrib-
45 utions at the time of such member's retirement and an additional pension
46 which is the actuarial equivalent of the reserved-for-increased-take-
47 home-pay to which such member may be entitled shall be sufficient to
48 provide such member with a retirement allowance equal to one-half of
49 such member's final average salary. For service beyond twenty-five
50 years, the benefit shall be increased by one-sixtieth of final average
51 salary for each year of additional service credit provided, however, the
52 total allowance payable pursuant to this section shall not exceed three-
53 fourths of such member's final average salary.

54 h. In computing the twenty-five years of total service of a member
55 pursuant to this section, full credit shall be given and full allowance
56 shall be made for service of such member in time of war after World War

I as defined in section two of this chapter, provided such member at the time of such member's entrance into the armed forces was in the service of the county of such member's employer that makes the election provided for in this section.

i. Nothing in this section shall be construed to prevent a member, who does not retire pursuant to the provisions of this section, from utilizing service which is creditable service pursuant to the provisions of this section for service credit pursuant to the provisions of any other plan of this article to which such member is subject.

j. (1) Each employer that elects pursuant to the provisions of this subdivision shall pay the cost attributable therefor.

(2) The benefits of this section shall be available only to those members as defined in subdivisions a and d of this section whose employer elects to provide such benefits by adopting a resolution to such effect and filing a certified copy thereof with the comptroller. Such resolution may also contain an election that any past services cost be paid over either a five-year or ten-year period. Such resolution shall be accompanied by the affidavit of the officer of the state making an election pursuant to this subdivision or the chief executive officer of the county or municipality that the state, county or municipality has received an estimate from the retirement system of the cost of the benefit provided by this section.

(3) Such resolution shall apply to all members defined in subdivisions a and d of this section, except those already subject to a retirement plan which permits immediate retirement with a benefit upon a specified period of service of twenty-five years or less without regard to age.

k. The provisions of this section shall be controlling notwithstanding any other provisions in this article to the contrary.

§ 2. Subdivision a of section 445 of the retirement and social security law, as amended by section 2 of part TT of chapter 55 of the laws of 2025, is amended to read as follows:

a. No member of a retirement system who is subject to the provisions of this article shall retire without regard to age, exclusive of retirement for disability, unless they are a police officer, an investigator member of the New York city employees' retirement system, firefighter, correction officer, a qualifying member as defined in section eighty-nine-t, as added by chapter six hundred fifty-seven of the laws of nineteen hundred ninety-eight, of this chapter, sanitation worker, a special officer (including persons employed by the city of New York in the title urban park ranger or associate urban park ranger), school safety agent, campus peace officer or a taxi and limousine commission inspector member of the New York city employees' retirement system or the New York city board of education retirement system, a dispatcher member of the New York city employees' retirement system, a police communications member of the New York city employees' retirement system, an EMT member of the New York city employees' retirement system, a deputy sheriff member of the New York city employees' retirement system, a correction officer of the Westchester county correction department as defined in section eighty-nine-e of this chapter or employed in Suffolk county as a peace officer, as defined in section eighty-nine-s, as added by chapter five hundred eighty-eight of the laws of nineteen hundred ninety-seven, of this chapter, employed in Suffolk county as a correction officer, as defined in section eighty-nine-f of this chapter, or employed in Nassau county as a correction officer, uniformed correction division personnel, sheriff, undersheriff or deputy sheriff, as defined in section eighty-nine-g of this chapter, or employed in Nassau county as an ambulance

1 medical technician, an ambulance medical technician/supervisor or a
2 member who performs ambulance medical technician related services, or a
3 police medic, police medic supervisor or a member who performs police
4 medic related services, as defined in section eighty-nine-s, as amended
5 by chapter five hundred seventy-eight of the laws of nineteen hundred
6 ninety-eight, of this chapter, or employed in Nassau county as a peace
7 officer, as defined in section eighty-nine-s, as added by chapter five
8 hundred ninety-five of the laws of nineteen hundred ninety-seven, of
9 this chapter, or employed in Albany county as a sheriff, undersheriff,
10 deputy sheriff, correction officer or identification officer, as defined
11 in section eighty-nine-h of this chapter or is employed in St. Lawrence
12 county as a sheriff, undersheriff, deputy sheriff or correction officer,
13 as defined in section eighty-nine-i of this chapter or is employed in
14 Orleans county as a sheriff, undersheriff, deputy sheriff or correction
15 officer, as defined in section eighty-nine-l of this chapter or is
16 employed in Jefferson county as a sheriff, undersheriff, deputy sheriff
17 or correction officer, as defined in section eighty-nine-j of this chap-
18 ter or is employed in Onondaga county as a deputy sheriff-jail division
19 competitively appointed or as a correction officer, as defined in
20 section eighty-nine-k of this chapter or is employed in a county which
21 makes an election under subdivision j of section eighty-nine-p of this
22 chapter as a sheriff, undersheriff, deputy sheriff or correction officer
23 as defined in such section eighty-nine-p or is employed in Broome County
24 as a sheriff, undersheriff, deputy sheriff or correction officer, as
25 defined in section eighty-nine-m of this chapter or is a Monroe county
26 deputy sheriff-court security, or deputy sheriff-jailor as defined in
27 section eighty-nine-n, as added by chapter five hundred ninety-seven of
28 the laws of nineteen hundred ninety-one, of this chapter or is employed
29 in Greene county as a sheriff, undersheriff, deputy sheriff or
30 correction officer, as defined in section eighty-nine-o of this chapter
31 or is a traffic officer with the town of Elmira as defined in section
32 eighty-nine-q of this chapter or is employed by Suffolk county as a park
33 police officer, as defined in section eighty-nine-r of this chapter or
34 is a peace officer employed by a county probation department as defined
35 in section eighty-nine-t, as added by chapter six hundred three of the
36 laws of nineteen hundred ninety-eight, of this chapter or is employed in
37 Rockland county as a deputy sheriff-civil as defined in section eighty-
38 nine-v of this chapter as added by chapter four hundred forty-one of the
39 laws of two thousand one, or is employed in Rockland county as a superi-
40 or correction officer as defined in section eighty-nine-v of this chap-
41 ter as added by chapter five hundred fifty-six of the laws of two thou-
42 sand one or is a paramedic employed by the police department in the town
43 of Tonawanda and retires under the provisions of section eighty-nine-v
44 of this chapter, as added by chapter four hundred seventy-two of the
45 laws of two thousand one, or is a county fire marshal, supervising fire
46 marshal, fire marshal, assistant fire marshal, assistant chief fire
47 marshal, chief fire marshal, division supervising fire marshal or fire
48 marshal trainee employed by the county of Nassau as defined in section
49 eighty-nine-w of this chapter or is employed in Monroe county as a depu-
50 ty sheriff-civil as defined in section eighty-nine-x of this chapter,
51 employed as an emergency medical technician, critical care technician,
52 advanced emergency medical technician, paramedic or supervisor of such
53 titles in a participating Suffolk county fire district as defined in
54 section eighty-nine-ss of this chapter, or is a firefighter apprentice,
55 airport firefighter I, airport firefighter II, airport firefighter III,
56 or training and safety officer employed by the division of military and

1 naval affairs as defined in section eighty-nine-y of this chapter, or is
2 employed as a public safety dispatcher, public safety telecommunicator,
3 911 operator, communications officers, police communication technician,
4 emergency services operator, emergency services dispatcher, or any simi-
5 lar title, employed by the state, or a county or municipal emergency
6 services department who is responsible for receiving and managing emer-
7 gency calls, and dispatching appropriate emergency services, including
8 but not limited to, law enforcement, fire, and medical assistance as
9 defined in section eighty-nine-z of this chapter, and is in a plan which
10 permits immediate retirement upon completion of a specified period of
11 service without regard to age. Except as provided in subdivision c of
12 section four hundred forty-five-a of this article, subdivision c of
13 section four hundred forty-five-b of this article, subdivision c of
14 section four hundred forty-five-c of this article, subdivision c of
15 section four hundred forty-five-d of this article, subdivision c of
16 section four hundred forty-five-e of this article, subdivision c of
17 section four hundred forty-five-f of this article and subdivision c of
18 section four hundred forty-five-h of this article, a member in such a
19 plan and such an occupation, other than a police officer or investigator
20 member of the New York city employees' retirement system or a firefight-
21 er, shall not be permitted to retire prior to the completion of twenty-
22 five years of credited service; provided, however, if such a member in
23 such an occupation is in a plan which permits retirement upon completion
24 of twenty years of service regardless of age, they may retire upon
25 completion of twenty years of credited service and prior to the
26 completion of twenty-five years of service, but in such event the bene-
27 fit provided from funds other than those based on such a member's own
28 contributions shall not exceed two per centum of final average salary
29 per each year of credited service.

30 § 3. Section 603 of the retirement and social security law is amended
31 by adding a new subdivision x to read as follows:

32 x. The service retirement benefit specified in section six hundred
33 four, six hundred four-c, as added by chapter ninety-six of the laws of
34 nineteen hundred ninety-five, or six hundred four-d of this article
35 shall be payable to members with twenty-five or more years of creditable
36 service, without regard to age, who are employed as public safety
37 dispatcher, public safety telecommunicator, 911 operator, communications
38 officers, police communication technician, emergency services operator,
39 emergency services dispatcher, or any similar title, employed by the
40 state, or a county or municipal emergency services department who is
41 responsible for receiving and managing emergency calls, and dispatching
42 appropriate emergency services, including but not limited to, law
43 enforcement, fire, and medical assistance as defined in section eighty-
44 nine-z of this chapter if: (i) such members have met the minimum service
45 requirements upon retirement, and (ii) in the case of a member subject
46 to the provisions of article fourteen of this chapter, such member files
47 an election therefor which provides that such member will be subject to
48 the provisions of this article and to none of the provisions of such
49 article fourteen. Such election, which is irrevocable, shall be in writ-
50 ing, duly executed and shall be filed with the comptroller within one
51 year of an election such member's employer makes or within one year
52 after entering the employment with such county, municipality or employer
53 upon which eligibility is based, whichever comes later. For the purposes
54 of this subdivision, the term "creditable service" shall have the mean-
55 ing as defined in sections eighty-nine-z and six hundred one of this
56 chapter.

§ 4. Section 604 of the retirement and social security law is amended by adding a new subdivision x to read as follows:

x. The early service retirement for a member who is employed by the state, or in a county, municipality or employer that makes the election provided for in subdivision j of section eighty-nine-z of this chapter as a public safety dispatcher, public safety telecommunicator, 911 operator, communications officers, police communication technician, emergency services operator, emergency services dispatcher, or any similar title, employed by the state, or a county or municipal emergency services department who is responsible for receiving and managing emergency calls, and dispatching appropriate emergency services, including but not limited to, law enforcement, fire, and medical assistance, as defined in section eighty-nine-z of this chapter shall be a pension equal to one-fiftieth of final average salary times years of credited service at the completion of twenty-five years of service, but not exceeding one-half of such member's final average salary. For service beyond twenty-five years, the benefits shall increase by one-sixtieth of final average salary for each year of additional service credit provided, however, that the total allowance payable pursuant to this section shall not exceed three-fourths of such member's final average salary.

§ 5. All past service costs incurred with implementing the provisions of this act shall be borne by any employer that elects to provide the benefits provided by this act.

§ 6. This act shall take effect on the first of January next succeeding the date on which it shall have become a law.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would allow the state, counties, and municipal emergency services departments to provide members employed in a title that is responsible for receiving and managing emergency calls and dispatching appropriate emergency services, the option to retire with twenty-five years of service credit. The benefit would be one-half of final average salary (FAS) plus one-sixtieth of FAS for each additional year of creditable service, not to exceed three-fourths (75%) of FAS. Additionally, members covered under Article 14 would be permitted one year to make an irrevocable election to switch to the twenty-five-year plan benefit.

We estimate that the annual contribution required of an electing employer will increase by 7% of the salary paid to the affected members. Annual costs will vary as the billing rates and salary of the affected members change.

In addition, there will be a past service cost borne by each electing employer. This cost will vary by employer but is expected to average approximately 30% of the salary paid to the affected members. This past service cost can be borne as a one-time payment or paid over a five-year or ten-year period.

Further, we anticipate additional administrative costs to implement the provisions of this legislation.

The exact number of current members as well as future members who could be affected by this legislation cannot be readily determined. Prior to electing to provide these benefits, an employer would be required to submit a roster of eligible members to the New York State and Local Retirement System. This roster would be used to determine an exact cost to the individual employer electing to provide these benefits.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated February 11, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-40. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.